

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MIGUEL OLIVERA,

Plaintiff(s),

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
SERGEANT JONATHAN VIRTUOSO, and
"POLICE OFFICERS JOHN DOE 1-10,"
currently unknown employees of the
NEW YORK CITY POLICE DEPARTMENT,

Defendant(s).
-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Harrison, NY
May 2, 2022

Yours, etc.,

LAW OFFICES OF
JOSEPH I. ORLIAN, PC

By: 

Joseph I. Orlian, Esq.

Attorney(s) for Plaintiff(s)

MIGUEL OLIVERA

600 Mamaroneck Avenue, Suite 400

Harrison, NY 10528

(914) 236-0536

Index No.:

Date purchased:

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is the
location of occurrence
Plaintiff resides at
759 Home Street
Bronx, NY 10456

TO:

CITY OF NEW YORK- 1 Centre Street, New York, NY 10001

NEW YORK CITY POLICE DEPARTMENT- 1 Police Plaza, New York, NY 10038

SERGEANT JONATHAN VIRTUOSO- c/o NEW YORK CITY POLICE DEPARTMENT-
1 Police Plaza, New York, NY 10038

POLICE OFFICERS JOHN DOE 1-10- c/o NEW YORK CITY POLICE DEPARTMENT-
1 Police Plaza, New York, NY 10038

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**VERIFIED
COMPLAINT**

Plaintiff, MIGUEL OLIVERA, by his attorneys, the LAW OFFICES OF JOSEPH I.
ORLIAN, PC, as and for his Verified Complaint, alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST,
WRONGFUL DETENTION AND EXCESSIVE USE OF FORCE**

1. This is a Civil Rights action in which the Plaintiff, MIGUEL OLIVERA, seeks relief for the Defendants' violations of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. §1983, of the United States Constitution, including the First, Fourth and Fourteenth Amendments, and by the Laws and Constitution of the State of New York.

2. Plaintiff, MIGUEL OLIVERA, seeks compensatory and punitive damages, an award of costs, interest and attorney's fees, and such other and further relief as this court deems just, proper and equitable.

3. That at all of the times relevant to this action, the Plaintiff, MIGUEL OLIVERA, was a resident of the County of Bronx, City and State of New York. He is currently a resident of the

County of Bronx, City and State of New York.

4. That at all of the times hereinafter mentioned, the Defendant, CITY OF NEW YORK, was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

5. That at all the times hereinafter mentioned, the Defendant, CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction.

6. That at all the times hereinafter mentioned, the Defendant, CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction, and which said Police Department employed the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10", currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT.

7. That at all of the said times and places hereinafter mentioned, the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, were in the employ of the NEW YORK CITY POLICE DEPARTMENT.

8. That at all of the said times and places hereinafter mentioned, the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, were in the employ of the NEW YORK CITY POLICE DEPARTMENT, were acting within the scope of their employment with, and under the color of authority of the NEW YORK CITY POLICE DEPARTMENT.

9. That heretofore and on the arose on 23rd day of May, 2021, at approximately 6:00 p.m., at Prospect Avenue at/near the intersection with 163rd Street, in the County of Bronx, City and State of New York, the Plaintiff, MIGUEL OLIVERA, was assaulted and battered, falsely arrested, and wrongfully detained, by officers of the New York City Police Department, including, but not limited to, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, and was charged with, upon information and belief, Resisting Arrest.

10. That at the aforesaid time and place, the Plaintiff was caused to be detained by officers of the New York City Police Department, including, but not limited to, the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT.

11. That at the aforesaid time and place, the Plaintiff was falsely, unjustly and without cause, arrested by said officers, including, but not limited to, Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT.

12. That at the aforesaid time and place, the Plaintiff was physically assaulted and battered by said officers, including, but not limited to, Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT.

13. That the aforesaid unlawful detention and the aforesaid physical assault and battery, continued thereafter at the 42nd Precinct house, located at 830 Washington Avenue, Bronx, New York 10451.

14. That the Plaintiff was then placed under custodial arrest and held in a cell at the 42nd Precinct house, located at 830 Washington Avenue, Bronx, New York 10451, and subsequently at Bronx Central Booking, located at 215 East 161st Street, Bronx, New York 10451.

15. That at all the said times, the aforesaid police officers, including, but not limited to, Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, who assaulted, battered, and detained, and who falsely, unjustly and without cause, arrested this Plaintiff, were agents, servants and/or employees of the Defendant, CITY OF NEW YORK.

16. That at all the said times, the aforesaid police officers, including, but not limited to Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, who assaulted, battered, and detained, and who falsely, unjustly and without cause, arrested this Plaintiff, were on duty and acting within the course and scope of their employment.

17. That at all the said times, the aforementioned assault, battery, detainment and false arrest of this Plaintiff by officers of the New York City Police Department, including, but not limited to, Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, was without just cause, probable cause or provocation.

18. That as a result of the foregoing, the Defendants, its/their agents, servants and/or employees violated Plaintiff's civil and constitutional rights.

19. That upon information and belief, on or about the 26th day May, 2021, the charges

made by the Defendants against the Plaintiff were dismissed at arrangement, and/or otherwise resolved in Plaintiff's favor.

20. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees in and about the operation, maintenance, management and control its Police Department and members thereof; in giving making false declarations; in that these Defendants, their agents, servants and/or employees failed to properly train, supervise and control the actions and activities of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the Plaintiff; in that these Defendants, or any of them, their agents, servants and/or employees, allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these Defendants, or any of them, their agents, servants and/or employees negligently trained, hired and retained said police officers to act on its/their behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the Plaintiff during the course and scope of their employment as police officers for the New York City Police Department acting under color of law; in that these Defendants, or any of them, their agents, servants and/or employees were otherwise careless and negligent in utter disregard of the rights, safety and well-being of this Plaintiff and other persons similarly situated.

21. That this Plaintiff did not contribute to the happening of this occurrence nor to the

injuries sustained by him by any act or omission on his part.

22. That solely by virtue of the foregoing, this Plaintiff was rendered sick, and disabled; he was physically assaulted and battered; he was subjected to great indignities, embarrassment, mental anguish, and was held up to scorn, shame, ridicule and embarrassment and was tormented, abused and humiliated in person and character; he was psychologically and physically injured, and wounded; he sustained a severe shock to his nervous system and suffered intense pain and mental anguish; he was confined in and about his bed and home for a considerable period of time and was incapacitated from attending to his usual vocation; he was obliged to expend diverse sums of money and/or incur obligation for medical attention, care, treatment and supplies in an endeavor to cure or lessen the effects of his afore described injuries; the Plaintiff was in other respects injured, all to the extent of a sum of damages which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION UNDER THE
FOURTH AND FOURTEENTH AMENDMENTS AND 42 U.S.C. §1983**

23. That the Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the First Cause of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

24. That at all of the times relevant to this action, the Defendant, CITY OF NEW YORK, was, and remains, a municipal entity created and authorized under the laws of the State of New York, and was, and remains, authorized to maintain a police department that acts as its agent in the area of law enforcement and for which the Defendant, CITY OF NEW YORK, is ultimately responsible.

25. That at all of the times relevant to this action, the Defendant, CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers, and the Defendant, CITY OF NEW YORK, was, at all times relevant to this action, the employer of the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, who were the police officers who assaulted, battered, detained and arrested the Plaintiff, MIGUEL OLIVERA.

26. That the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, were, at all of the times relevant to this action, duly appointed and acting police officers, agents, servants and/or employees of the NEW YORK CITY POLICE DEPARTMENT, and were acting under the color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York City Police Department; in the course and scope of their duties and function as a police officers, agents, servants and/or employees of the Defendant, CITY OF NEW YORK; were acting for, and on behalf of, and with the power and authority vested in them, by the Defendants, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT; were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties; and are sued herein individually and in their official capacity.

27. That at the time of the aforesaid arrest, and at all times thereafter, the Plaintiff was unjustly, and without cause, detained, deprived of his liberty; maligned in reputation; verbally harassed, mentally assailed and physically assaulted and battered against his will and without his

consent, by officers of the New York City Police Department, including, but not limited to the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, in violation of Plaintiff's State and Federal Constitutional rights, 42 USC §1983, causing him to sustain severe personal injuries, humiliation, embarrassment and expenses.

28. That by the conduct, acts and omissions complained of herein, the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, violated clearly established constitutional standards under the First, Fourth and Fourteenth Amendments to the United States Constitution of which a reasonable police officer under the circumstances would have known.

29. That the conduct of the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10", currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, in detaining the Plaintiff, MIGUEL OLIVERA, and using force against him, was totally without probable cause, was excessive, and was done maliciously, falsely and in bad faith.

30. That at all of the times relevant to this action, the conduct and actions of the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, acting under color of law, was excessive and unreasonable, was done intentionally, willfully, maliciously, with a deliberate indifference and/or reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason, and was designed to,

and did, cause specific and serious physical and emotional pain and suffering in violation of Plaintiff's rights as guaranteed under 42 U.S.C. §1983, and the First, Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to, the right to be free from unreasonable seizure of his person and the right to be free from the use of excessive, unreasonable and unjustified force.

31. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," currently unknown employees of the NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, in and about the operation, maintenance, management and control its Police Department and members thereof; in giving/making false declarations; in that these Defendants, and/or any of them, their agents, servants and/or employees, failed to properly train, supervise and control the actions and activities of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the Plaintiff; in that these Defendants, their agents, servants and/or employees allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these Defendants, their agents, servants and/or employees, negligently trained, hired and retained said police officers to act on its/their behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the Plaintiff during the course and scope of its/their employment as police officers for the New York City Police Department acting under color of law; in that these Defendants, their agents, servants and/or

employees were otherwise careless and negligent in utter disregard of the rights, safety and wellbeing of this Plaintiff and other persons similarly situated.

32. That this Plaintiff did not contribute to the happening of this occurrence nor to the injuries sustained by him by any act or omission on his part.

33. That as a direct and proximate result of the foregoing, the Plaintiff, MIGUEL OLIVERA, was subjected to great physical and emotional pain and humiliation, was deprived of his liberty, and was otherwise damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MUNICIPAL LIABILITY FOR CONSTITUTIONAL VIOLATIONS**

34. That the Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the First and Second Causes of Action of this Complaint with the same full force and effect as if they had been repeated at length herein.

35. That the Defendant, CITY OF NEW YORK, directly caused the constitutional violations suffered by the Plaintiff as a result of the conduct of the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," and that the conduct of the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," was a direct result of the policies and practices of the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

36. That at all of the times relevant to this action, the Defendant, CITY OF NEW YORK, acting through the New York City Police Department, had in effect policies, practices and customs that condoned and fostered the unconstitutional conduct of the Defendants,

SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," and which policies, practices and customs were a direct and proximate cause of the damages and injuries complained of herein.

37. That at all of the times relevant to this action, the Defendant, CITY OF NEW YORK, acting through the New York City Police Department and the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," had policies, practices, customs and usages of encouraging and/or tacitly sanctioning the above violations of Plaintiff's aforesaid rights; and that upon information and belief, the Defendant, CITY OF NEW YORK, acting through the New York City Police Department and the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," planned and implemented a policy, practice, customs and usages for arrests such as made herein, that was/were designed to, and did, preempt lawful activities by illegally detaining persons such as Plaintiff engaged in constitutionally protected activities; using excessive force against persons such as Plaintiff engaged in constitutionally protected activities; and falsely arresting persons such as Plaintiff engaged in constitutionally protected activities.

38. That at all of the times relevant to this action, the Defendant, CITY OF NEW YORK, consciously disregarded the illegality and unconstitutionality of the complained of assault, battery, arrest, detention and use of force, and which was a direct and proximate cause of the damages and injuries complained of herein.

39. That the existence of these unconstitutional customs and policies, specifically as it relates to the use of force, arrest and detention in cases such as this is evidenced by the countless repeat occurrences of similar wrongful conduct in the use of force, arrest and detention of young,

minority males, such as the within Plaintiff.

40. That the Defendant, CITY OF NEW YORK, knew or should have known, of the propensity of the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," to engage in misconduct of the type alleged herein and further that the Defendant, CITY OF NEW YORK, was aware of several complaints of police misconduct involving use of force, arrest and detention in cases such as this by the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," and despite such knowledge of prior misconduct, failed to take remedial action.

41. That it was the policy of the Defendant, CITY OF NEW YORK, to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by Defendant, CITY OF NEW YORK, including, but not limited to, the types of incidents alleged above.

42. That it was the policy of the Defendant, CITY OF NEW YORK, to inadequately train, supervise and discipline its police offices, including the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," by failing to adequately discourage further constitutional violations; and that the Defendant, CITY OF NEW YORK, failed to require appropriate in-service training or re-training of its police offices, including the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," who were known to have engage in police misconduct as alleged above.

43. That as a result of the above-referenced policies and customs of the Defendant, CITY OF NEW YORK, its police offices, including the Defendants, SERGEANT JONATHAN VIRTUOSO and "POLICE OFFICERS JOHN DOE 1-10," believed that their actions would not

be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

44. That the wrongful policies, practices, customs and/or usages complained of herein, demonstrates a deliberate indifference on the part of the Defendant, CITY OF NEW YORK, to the constitutional rights of persons within the City of New York, and were the direct and proximate cause of the violations of Plaintiff's rights alleged herein.

45. That as a direct and proximate result of the foregoing, the Plaintiff, MIGUEL OLIVERA, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION OF
ARTICLE 1, SECTION 11 OF THE NEW YORK STATE CONSTITUTION**

46. That the Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the First, Second and Third Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

47. That the acts of the Defendants, acting under color of law, in arresting the Plaintiff and in physically assaulting the Plaintiff, were racially motivated and were done without lawful justification, and were designed to, and did, cause specific and serious bodily harm, pain and suffering to the Plaintiff in violation of his Constitutional right to equal protection as guaranteed by Article 1, Section 11 of the Constitution of the State of New York.

48. That the foregoing acts and conduct of the Defendants were a direct and proximate result of the foregoing, and, as a result, the Plaintiff, MIGUEL OLIVERA, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would

otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION OF
ARTICLE 1, SECTION 12 OF THE NEW YORK STATE CONSTITUTION**

49. That the Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the First, Second, Third and Fourth Causes of Action of this Complaint with the same full force and effect as if they had been repeated at length herein.

50. That the acts of the Defendants, acting under color of law, in subjecting the Plaintiff to unlawful search and seizure, arrest and excessive force by physically assaulting Plaintiff, was done without reasonable suspicion or probable cause and were designed to, and did, cause specific and serious bodily harm, pain and suffering to the plaintiff in violation of his Constitutional right to equal protection as guaranteed by Article 1, Section 12 of the Constitution of the State of New York.

51. That the foregoing acts and conduct of the Defendants were a direct and proximate result of the foregoing, the Plaintiff, MIGUEL OLIVERA, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

CONDITIONS PRECEDENT

52. That on the 3rd day of August, 2021, the Plaintiff presented, served and filed a Notice of Claim with intention to sue thereon upon the Comptroller of the City of New York.

53. That the Comptroller of the City of New York requested that the Plaintiff attend an oral hearing which was held on September 14, 2021.

54. That more than 30 days have elapsed and expired since the presentation of the

Notice of Claim and intention to sue, and the Comptroller of the City of New York has failed and neglected to pay or adjust the said claim or any part thereof.

55. That the Plaintiff presented, served and filed his Notice of Claim and Intention to Sue thereon, as aforesaid, within 90 days after the date of the occurrence herein.

56. That this action was commenced within one year and ninety days since the happening of this accident and occurrence.

57. That the Plaintiff has, prior to the commencement of this action, complied with all of the provisions of law in such cases made and provided.

WHEREFORE, the Plaintiff demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action in a sum of damages in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

Dated: Harrison, NY
May 4, 2022

Yours, etc.,

LAW OFFICES OF
JOSEPH I. ORLIAN, PC

By: 

Joseph I. Orlian, Esq.

Attorney(s) for Plaintiff(s)

MIGUEL OLIVERA

600 Mamaroneck Avenue, Suite 400

Harrison, NY 10528

(914) 236-0536

ATTORNEY'S VERIFICATION

JOSEPH I. ORLIAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

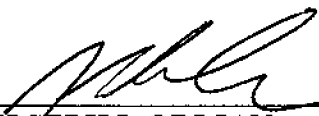
I am the attorney of record for Plaintiff(s), **MIGUEL OLIVERA**. I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the plaintiff(s) maintain their offices.

Dated: Harrison, NY
May 4, 2022



JOSEPH I. ORLIAN

Index No.:

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SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF JOSEPH I. ORLIAN, PC

Attorney(s) for Plaintiff(s)

600 Mamaroneck Avenue, Suite 400

Harrison, NY 10528

(914) 236-0536

TO: